



CHAPTER lxxviii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Abergavenny Brighton Colwyn Bay and Colwyn Parts of Holland Mitcham Newton in Mackerfield Shoreham-by-Sea and Stoke-on-Trent.

A.D. 1925.

[31st July 1925.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 the Local Government Act 1888 and the Poor Law Amendment Act 1867:

38 & 39 Vict.

c. 55.

51 & 52 Vict.

c. 41.

30 & 31 Vict

c. 106.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 3) Act 1925.

Short title.

[Ch. lxxviii.] *Ministry of Health* [15 & 16 GEO. 5.]
Provisional Orders Confirmation (No. 3) Act, 1925.

A.D. 1925.

SCHEDULE.

BOROUGH OF ABERGAVENNY.

*Abergavenny
Order.*

*Provisional Order for partially repealing altering
or amending certain Local Acts.*

WHEREAS the Borough of Abergavenny (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Abergavenny Improvement Act 1854 (hereinafter referred to as "the Act of 1854") and of the Abergavenny Improvement Act 1871 (hereinafter referred to as "the Act of 1871") are in force in the Borough;

And whereas Section 23 of the Act of 1854 incorporates certain provisions of the Towns Improvement Clauses Act 1847 (hereinafter referred to as "the Act of 1847") and the Corporation propose to make new byelaws under the Public Health Acts the subject-matter of which will be cognate to the subject-matter of certain of the said provisions of the Act of 1847 and of certain of the provisions of the Act of 1871;

And whereas certain other of the said provisions of the Act of 1847 are covered by the corresponding provisions of the Public Health Act 1875;

And whereas the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Acts of 1854 and 1871 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

Date of
operation.

1. This Order shall come into operation on the First day of January one thousand nine hundred and twenty-six or on such earlier date on which new byelaws of the Corporation with respect to new streets and buildings are confirmed by the Minister of Health.

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2.—(1) So much of Section 23 of the Act of 1854 as incorporates the provisions of Sections 33 35 to 41 (inclusive) 44 to 46 (inclusive) 57 to 63 (inclusive) 74 and 109 of the Act of 1847 shall be repealed. A.D. 1925.
—
Abergavenny
Order.

(2) Sections 23 25 and 26 of the Act of 1871 shall be repealed. Partial

(3) Section 28 of the Act of 1871 shall be amended by the omission of the words—
repeal and
amendment
of Local
Acts.

“ and every such watercloset and ashpit shall be constructed to the satisfaction of the Commissioners ” the words “ The situation, dimensions, materials, and construction of every watercloset ” to “ ventilation ” and the words “ to the satisfaction of the Commissioners ”

where they last occur.

3. This Order may be cited as the Abergavenny Order 1925. Short title.

Given under the Official Seal of the Minister of Health
this Fourth day of March One thousand nine hundred
and twenty-five.

(L.S.)

H. W. S. FRANCIS

Assistant Secretary Ministry of Health.

PARISH OF BRIGHTON.

*Provisional Order for partially repealing and altering
the Local Act 6 George IV. Chapter clxxix.*

Brighton
(Poor Law)
Order.

WHEREAS in the Parish of Brighton the relief of the poor and the making and levying of the poor rate are subject to the control or regulation of a local Act (hereinafter referred to as “ the Local Act ”) passed in the Sixth year of the reign of His Majesty King George the Fourth and intituled “ An Act for the better regulating, paving, improving, and managing the Town of Brighthelmston in the County of Sussex, and the Poor thereof ” and by that local Act certain powers were conferred and duties imposed on the Directors and Guardians of the Poor of the Parish of Brighthelmston ;

And whereas the powers and duties under the Local Act of the Directors and Guardians aforesaid are now vested in and imposed upon the Guardians of the Poor of the Parish of Brighton and the Guardians have applied to the Minister of Health for the issue of a Provisional Order for the repeal or alteration of parts of the Local Act in the manner hereinafter set forth ;

And whereas upon the receipt of the application of the Guardians the Minister of Health directed a local inquiry to

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A.D. 1925. be held by one of his inspectors and a report has been made to him thereon :

*Brighton
(Poor Law)
Order.*

Now therefore the Minister of Health in pursuance of the powers given to him by Section 2 of the Poor Law Amendment Act 1867 and of all other powers enabling him in that behalf hereby orders that on and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

Short title
and com-
mencement.

1. This Order may be cited as the Brighton (Poor Law) Order 1925 and shall come into operation on the First day of October One thousand nine hundred and twenty-five.

Repeal.

2.—(1) Sections one hundred and thirty and one hundred and thirty-one and sections one hundred and ninety-nine to two hundred and thirty-eight of the Local Act are hereby repealed.

(2) The provisions of the Local Act mentioned in the first column of the Schedule to this Order are hereby repealed to the extent specified in the second column of that Schedule and sections two hundred and forty-four two hundred and forty-five and two hundred and forty-seven of the Local Act are hereby repealed in so far as they extend to proceedings under the provisions of the Local Act repealed by this Order.

THE SCHEDULE.

PROVISIONS OF THE LOCAL ACT (6 GEO. IV. C. CLXXIX.)
IN PART REPEALED.

Provision.	Extent of Repeal.
Preamble	From " And whereas in consequence of the Increase of " the said Town great Difficulty " to " Heredita- " ments within the said Parish."
Section two hundred and thirty-nine.	The words "and also for the said Directors "and Guardians" the words "and as to the " Directors and Guardians for the Payment of the " Rate or Rates Assessment or Assessments for the " Relief and Maintenance of the Poor " the words "and Directors and Guardians " (wherever they occur) and the words " or Directors and Guardians."
Section two hundred and forty-two.	The words "or Directors and Guardians " (wherever they occur).

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Provision.	Extent of Repeal.
Section two hundred and forty-six.	The words "or as the Case may be to the said Directors " and Guardians."
Section two hundred and forty-nine.	The words "or Director and Guardian" (wherever they occur) and the words "or Directors and Guardians or any Officer appointed by the Vestry."
Section two hundred and fifty-six.	The words "or of the said Directors and Guardians " (as the Case may be)."
Section two hundred and fifty-eight.	The words "or Directors and Guardians" (wherever they occur).

A.D. 1925.

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Brighton
(Poor Law)
Order.

Given under the Official Seal of the Minister of Health
this Twenty-third day of March One thousand nine
hundred and twenty-five.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF COLWYN BAY AND COLWYN.

*Provisional Order for amending the Colwyn Bay and
Colwyn Urban District Council Act 1902.*

Colwyn Bay
and Colwyn
Order.

WHEREAS the Urban District Council of Colwyn Bay and Colwyn (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Colwyn Bay and Colwyn (hereinafter referred to as "the District") and the unrepealed provisions of the Colwyn Bay and Colwyn Urban District Council Acts 1897 and 1902 (hereinafter referred to as the "Act of 1897" and "the Act of 1902") are in force in the District;

And whereas under the powers conferred upon them by Section 6 of the Act of 1902 the Council have constructed and maintain certain promenades and sea walls and other works connected therewith as in the said section mentioned and by Section 18 of the said Act the Council are authorised subject to the consent and approval of the Minister of Health to construct such improvements of and additions to the said works as they may from time to time deem necessary;

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—
*Colwyn Bay
 and Colwyn
 Order.*

And whereas by Section 50 of the said Act (as amended by the Colwyn Bay and Colwyn Order 1911) the Council were authorised to borrow certain sums for the purposes of that Act but such borrowing powers are now exhausted;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to amend the Act of 1902 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the said Act shall be amended so that the following provisions shall take effect that is to say :—

Further
 borrowing
 powers.

1.—(1) The Council may subject to the provisions of this Order borrow upon the security of the district fund or general district rate such sums not exceeding three thousand three hundred and seventeen pounds as may be necessary for works authorised by section 18 of the Act of 1902.

(2) The Council may with the sanction of the Minister of Health and subject to the provisions of this Order borrow upon the security of the district fund or general district rate such further moneys as may be necessary from time to time for any purpose of the Act of 1902.

Period for
 repayment
 of borrowed
 moneys.

(3) Any moneys borrowed under sub-division (1) of this Article shall be repaid within thirty years from the date of borrowing and any moneys borrowed under sub-division (2) of this Article shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Minister of Health in each case may determine and the period prescribed by or in pursuance of this Article as the case may be shall with reference to the repayment of such moneys be the prescribed period for the purposes of this Order and the Local Loans Act 1875.

Mode of
 borrowing.

2. The Council may raise all or any moneys which they are authorised to borrow under this Order by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others :

Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of Section 15 of that Act.

Application
 of provisions
 of Acts of
 1897 and
 1902.

3. Sections 50 and 51 of the Act of 1897 and Sections 52 and 53 of the Act of 1902 shall extend and apply to any moneys borrowed under the powers of this Order but in the case of the last-mentioned section not so as to limit the powers conferred on the Council by Section 61 of that Act.

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4. The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

A.D. 1925.

Colwyn Bay
and Colwyn
Order.

Mode of
repayment.

5.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
maintenance
and applica-
tion of sink-
ing fund.

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or at such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per

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A.D. 1925. centum per annum on which the annual payments to the sinking fund are based.

—
*Colwyn Bay
and Colwyn
Order.*

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(6) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

6.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Council shall increase the payments to such extent as the Minister may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Minister of Health the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Minister may approve.

(4) If in the opinion of the Minister of Health the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the

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consent of the Minister discontinue the equal annual payments to the sinking fund until the Minister otherwise directs. A.D. 1925.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Minister of Health may determine. *Colwyn Bay and Colwyn Order.*
Surplus of sinking fund.

7.—(1) The Council shall have power—

Power to re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

8. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Minister of Health determine. Application of borrowed moneys.

9.—(1) The Council may instead of exercising the borrowing powers authorised by this Order by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such Power to use sinking fund instead of borrowing.

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A.D. 1925.

—
*Colwyn Bay
and Colwyn
Order.*

purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under this Order if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this Article shall—

(a) withdraw from the sinking fund a sum equal to the amount of the borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) debit the account of the borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the borrowing power shall apply thereto accordingly.

(3) The provisions of this Article shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Minister of Health with regard to the exercise of the powers contained in this Article as the Minister shall require.

Return to
Minister of
Health with
respect to
repayment
of debt.

10.—(1) The clerk to the Council shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under the authority of this Order.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery

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of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by Order direct that the sum in such Order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such Order mentioned and any such Order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this Article shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of the local Acts or Provisional Orders now in force in the District notwithstanding anything contrary to or inconsistent therewith in any such Act or Order.

11.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

A.D. 1925.
—
*Colwyn Bay
and Colwyn
Order.*

Inquiries
and
expenses.

(2) Where the Minister causes any such inquiry as aforesaid to be held the cost incurred by the Ministry in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Ministry engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

12. This Order may be cited as the Colwyn Bay and Colwyn Order 1925.

Given under the Official Seal of the Minister of Health this
Seventeenth day of March One thousand nine hundred
and twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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A.D. 1925.

COUNTY OF THE PARTS OF HOLLAND.

*County of
the Parts of
Holland
Order.*

*Provisional Order made in pursuance of Sections 69 (2)
and 87 of the Local Government Act 1888.*

WHEREAS by Article 1 of the County of the Parts of Holland Order 1922 (hereinafter referred to as "the Order of 1922") the County Council of the Administrative County of the Parts of Holland were authorised to borrow such sums as might be required to an amount not exceeding in the aggregate the sum of eighty thousand pounds in excess of the limit imposed by the provisions of subsection (2) of Section 69 of the Local Government Act 1888 (hereinafter referred to as "the Act");

And whereas the said County Council have made application to the Minister of Health for the issue of a Provisional Order to amend the Order of 1922 in manner hereinafter appearing:

Now therefore the Minister of Health in pursuance of the powers given to him by the Act and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Order of 1922 shall be amended in manner following that is to say:—

Additional
borrowing
powers.

1. Article 1 of the Order of 1922 shall have effect as if the words "one hundred and sixty thousand pounds" were therein substituted for the words "eighty thousand pounds."

Short title.

2. This Order may be cited as the County of the Parts of Holland Order 1925.

Given under the Official Seal of the Minister of Health
this First day of April One thousand nine hundred and
twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF MITCHAM.

A.D. 1925.

*Provisional Order for amending the Mitcham Urban
District Council Act 1923.*

*Mitcham
Order.*

WHEREAS the Urban District Council of Mitcham (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Mitcham (hereinafter referred to as "the District") and the unrepealed provisions of the Mitcham Urban District Council Act 1923 (hereinafter referred to as "the Local Act") are in force in that District;

And whereas by Section 5 of the Local Act certain lands (therein and hereinafter referred to as "the Mitcham Greens") were vested in the Council as therein mentioned and by virtue of Section 6 of the Local Act the Mitcham Greens are deemed to be public pleasure grounds within the meaning of the Public Health Acts;

And whereas by Section 6 of the Local Act further provision was made prohibiting the Council from erecting buildings on that part of the Mitcham Greens known as the Lower or Cricket Green except public lavatories and conveniences;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from the date of the Act of Parliament confirming this Order the Local Act shall be amended as follows:—

1. In this Order "the deposited plan" means the plan which was deposited in the Office of the Minister of Health on the 1st day of January 1925 and of which duplicates were on the same day deposited in the Office of the Clerk of the Parliaments House of Lords and in the Private Bill Office House of Commons.

2. Notwithstanding anything contained in the Local Act the Council may effect an exchange with Young and Company Brewery Limited of the land described in Part I. of the Schedule to this Order (which land forms part of the Lower or Cricket Green aforesaid) for the land described in Part II. of the said Schedule.

Exchange
of lands.

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A.D. 1925.

—
Mitcham
Order.
Appropriation of
common
lands.

3. Subject to the provisions of Article 4 of this Order the Council may appropriate the land acquired by them under Article 2 of this Order and that part of the Lower or Cricket Green which is described in Part III. of the Schedule to this Order as a site for the erection of a fire and ambulance station and additions to the offices of the Council :

Provided that nothing in this Order shall be deemed to authorise the Council to close block up divert or otherwise interfere with the free use by any person of the footpath commencing in London Road at or near the eastern corner of the premises known and shown on the deposited plan as the Vestry Hall and extending approximately in a westerly direction across the Lower or Cricket Green to Church Road.

Appropriation of
other land
as pleasure
ground.

4. The Council shall not exercise the powers of Article 3 of this Order until they have appropriated to the purposes of a public pleasure ground other suitable land in the District of at least equal area to those parts of the Lower or Cricket Green proposed to be appropriated to other purposes under this Order.

Skilled labour
not to be employed without
consent of
Minister of
Health.

5. The Council shall not commence any of the works mentioned in Article 3 of this Order requiring the employment of skilled building labour without having first obtained the consent of the Minister of Health to the execution of such work.

Short title

6. This Order may be cited as the Mitcham Order 1925.

THE SCHEDULE.

PART I.

All that plot of land containing 121 square yards or thereabouts lying between the south-west side of the premises known as the "Cricketer's Inn" and the roadway known as Lower Green West which plot of land is more particularly delineated and coloured yellow on the deposited plan.

PART II.

All that plot of land containing 205 square yards or thereabouts lying to the north-west of the Vestry Hall Mitcham which plot of land forms part of the garden of the Cricketer's Inn aforesaid and is more particularly delineated and edged green on the deposited plan.

PART III.

A.D. 1925.

All that plot of land containing 824 square yards or thereabouts situate to the north-west of and adjoining the Cricketer's Inn and the Vestry Hall which said land is more particularly delineated and coloured pink on the deposited plan.

*Mitcham
Order.*

Given under the Official Seal of the Minister of Health this
First day of April One thousand nine hundred and
twenty-five.

(L.S.)

H. W. S. FRANCIS

Assistant Secretary Ministry of Health.

URBAN DISTRICT OF NEWTON IN
MACKERFIELD.

*Provisional Order for altering the Newton District
Improvement Act 1855.*

*Newton in
Mackerfield
Order.*

WHEREAS the Urban District Council of Newton in Mackerfield (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Newton in Mackerfield and there are in force in that District the unrepealed provisions of the Newton District Improvement Act 1855 (hereinafter referred to as "the Local Act") as amended by certain Provisional Orders duly confirmed by Parliament which do not affect the subject matter of this Order;

And whereas the Council are empowered by the Local Act to make assess and levy certain rates within their District;

And whereas the Council have made application to the Minister of Health (hereinafter referred to as "the Minister") for the issue of a Provisional Order to alter and amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered or amended so that the following provision shall take effect that is to say:—

1.—(1) The Council may if they think fit from time to time make an allowance by way of discount not exceeding five per centum on the net amount which would otherwise be payable

Discount on
rates.

[Ch. lxxviii.] *Ministry of Health* [15 & 16 GEO. 5.]
Provisional Orders Confirmation (No. 3) Act, 1925.

A.D. 1925. in respect of any rate leviable by them or any water rent
or charge (or of any instalment thereof) to every person who
Newton in pays the same within such time after the rate rent or charge is
Mackerfield demanded (or after the instalment falls due) as the Council
Order. shall prescribe Provided always that the percentage of such
allowance shall be the same in every case.

(2) No such allowance as aforesaid shall be made to a person
in respect of any hereditament unless he has paid or at the same
time pays all rates (including water rents and charges) and
instalments thereof then due from him either to the Council
or to the Overseers of the Poor of the Parish of Newton in
Mackerfield in respect of that hereditament or where two or more
hereditaments are included in one demand note in respect of all
such hereditaments.

(3) Notice of the effect of this Article shall be endorsed
upon every demand note for a rate made by the Council or
water rent or charge.

Short title. 2. This Order may be cited as the Newton in Mackerfield
Order 1925.

Given under the Official Seal of the Minister of Health
this Second day of March One thousand nine
hundred and twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF SHOREHAM-BY-SEA.

Shoreham- *Provisional Order to enable the Urban District Council*
by-Sea *of Shoreham-by-Sea to put in force the Compulsory*
Order. *Clauses of the Lands Clauses Acts.*

WHEREAS the Urban District Council of Shoreham-by-Sea
(hereinafter referred to as "the Council") require to purchase
and take the lands described in the Schedule hereto for the
purpose of providing a public pleasure ground for the Urban
District of Shoreham-by-Sea :

Now therefore the Minister of Health in pursuance of the
powers given to him by Section 176 of the Public Health Act
1875 and by any other Statutes in that behalf hereby orders
that from and after the date of the Act of Parliament

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. lxxviii.]
Provisional Orders Confirmation (No. 3) Act, 1925.

confirming this Order the following provisions shall have effect A.D. 1925.
that is to say :—

1. The Council shall be empowered for the purpose aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them. *Shoreham-by-Sea Order.* Compulsory powers of purchase.

2. This Order may be cited as the Shoreham-by-Sea Order 1925. Short title.

The SCHEDULE above referred to.

COUNTY OF WEST SUSSEX.

Parish of Shoreham-by-Sea Urban District of Shoreham-by-Sea.

Description of Land.	Owner or reputed Owner.
Strip of waste land situate on east side of Adur river bank between the railway bridge and the sluices near Flood Arch and containing 1 acre 4 poles or thereabouts.	S. Easter Ferry Road Shoreham-by-Sea.

The above-mentioned land is more particularly delineated and coloured pink on a plan in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Shoreham-by-Sea Order 1925" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited in the Offices of the Council within fourteen days from the date of this Order.

Given under the Official Seal of the Minister of Health
this Thirteenth day of March One thousand nine
hundred and twenty-five.

(L.S.) H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

[Ch. lxxviii.] *Ministry of Health [15 & 16 GEO. 5.]
Provisional Orders Confirmation (No. 3) Act, 1925.*

A.D. 1925.

BOROUGH OF STOKE-ON-TRENT.

Stoke-on-Trent Order.

Provisional Order made in pursuance of Section 59 of the Local Government Act 1888 and Section 303 of the Public Health Act 1875 to amend the Borough of Stoke-on-Trent Order 1908 the Stoke-on-Trent (Extension) Order 1921 and the Stoke-on-Trent Corporation Act 1923.

WHEREAS by the Borough of Stoke-on-Trent Order 1908 (hereinafter referred to as "the Order of 1908") which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 3) Act 1908 the Boroughs of Burslem Hanley Longton and Stoke-upon-Trent the Urban District of Tunstall and part of the Urban District of Fenton were amalgamated to form the County Borough of Stoke-on-Trent (hereinafter referred to as "the Borough") of which the mayor aldermen and burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas by the Stoke-on-Trent (Extension) Order 1921 (hereinafter referred to as "the Order of 1921") which was confirmed by the Ministry of Health Provisional Order Confirmation (Stoke-on-Trent Extension) Act 1921 the boundaries of the Borough were extended and by that Order and by the Stoke-on-Trent Corporation Act 1923 (hereinafter referred to as "the Local Act") further provision was made with regard to the assessment of rates within the Borough;

And whereas under the Orders of 1908 and 1921 and the Local Act the Borough is for purposes of differential rating divided into thirteen districts but all differential rating within the Borough will cease on or before the thirty-first day of March One thousand nine hundred and thirty-one except as regards certain special rates levied in the six districts enumerated in Section 115 of the Local Act (and hereinafter referred to as "the six districts") in each of which a separate special rate is levied for the provision of the loan charges specified in Article XXVIII. of the Order of 1908;

And whereas it is desirable that the levying of such special rates as are mentioned above should likewise cease on the thirty-first day of March One thousand nine hundred and thirty-one and the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order to amend the Orders of 1908 and 1921 and the Local Act in the manner hereinafter appearing :

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. lxxviii.]
Provisional Orders Confirmation (No. 3) Act, 1925.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 59 of the Local Government Act 1888 and Section 303 of the Public Health Act 1875 and all other powers enabling him in that behalf hereby orders that on and after the date of the Act of Parliament confirming this Order the Orders of 1908 and 1921 and the Local Act shall be amended as follows:—

A.D. 1925.

—
Stoke-on-Trent Order.

1. Notwithstanding anything contained in the Order of 1921 or the Local Act Article XXVIII. of the Order of 1908 shall cease to have effect on the first day of April One thousand nine hundred and thirty-one and all sums becoming due for payment on and after that date in respect of such loan charges as fall within the provisions of the said Article shall be defrayed by the Corporation out of the Borough fund and consolidated rate of the Borough:

Special
rating under
Article 28 of
the 1908
Order to end
in 1931.

Provided that nothing herein contained shall affect the recovery of arrears of rates duly made before the said date.

2.—(1) In each of the six financial years ending on the thirty-first day of March One thousand nine hundred and twenty-six One thousand nine hundred and twenty-seven One thousand nine hundred and twenty-eight One thousand nine hundred and twenty-nine One thousand nine hundred and thirty and One thousand nine hundred and thirty-one respectively the Corporation in addition to levying in the six districts the special rates required to be levied under Article XXVIII. of the Order of 1908 shall levy therein additional special rates (to be collected with and to form part of the consolidated rate of the Borough) in accordance with the provisions of the next sub-paragraph.

Additional
special rates
to be levied
for six
years.

(2) In the case of each district the Corporation in assessing the additional special rates to be levied therein shall so far as is reasonably practicable ensure that the amounts raised by those rates shall be equal in each of the six years and shall be such that the aggregate receipts from those rates in that district during the six years would if accumulated at compound interest at three and a half per centum per annum until the first day of April One thousand nine hundred and thirty-one suffice to discharge the outstanding balance which will remain due on that date in respect of loans chargeable to that district.

(3) The sums raised in the six districts by the additional special rates levied under this Article shall notwithstanding anything in subdivision (2) hereof be carried to the credit of the revenue account of the Borough fund and if the total sum raised by such rates in any district during the six years shall prove to be greater or less than the exact sum directed to be raised by subdivision (2) hereof it shall not be necessary for any adjustment to be made as between that district and the Borough fund or for any supplemental rate to be levied in respect of such excess or deficiency.

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Provisional Orders Confirmation (No. 3) Act, 1925.

A.D. 1925.

—
Stoke-on-Trent Order.

(4) For the purposes of Article 42 of the Order of 1921 and of Section 115 of the Local Act an additional special rate levied in pursuance of this Article shall be deemed to be a special rate levied under Article XXVIII. of the Order of 1908.

Relief to
consolidated
rate until
1931.

3. In each of the six financial years specified in Article 2 hereof the Corporation in determining the poundage figure of the consolidated rate to be levied in each of the thirteen rating districts within the Borough shall proceed as follows :—

- (a) Having ascertained the aggregate amount estimated to be produced by the additional special rates to be levied in the six districts during that year they shall calculate the poundage figure which would be necessary if a consolidated rate were to be levied equally over the whole Borough to produce that amount;
- (b) They shall calculate as regards each of the thirteen rating districts the poundage figure of the consolidated rate which it would have been necessary to levy therein if this Order had not been made and shall then reduce the same by the poundage figure ascertained in accordance with paragraph (a) hereof; and
- (c) In each of the six districts shall increase the resultant figure so arrived at by the poundage figure of the additional special rate to be levied in that district in accordance with Article 2 hereof.

Short title.

4. This Order may be cited as the Stoke-on-Trent Special Rates Order 1925.

Given under the Official Seal of the Minister of Health this
Twenty-seventh day of February One thousand nine
hundred and twenty-five.

(L.S.)

R. B. CROSS
Assistant Secretary Ministry of Health.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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